ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO. 78th Commission Meeting

DATE: 10 May 2022

TIME: 2:00 PM

VENUE: Third Floor Meeting Room

#	AGENDA	DECISIONS
1.	Present findings & recommendations of the system study- PD, DoPE	The Division presented the revised findings and recommendation of management of surface collection and dredging of riverbed materials after first presentation made on 21 April 2022. Towards this, specific comments made were: • Issues and findings are same words. Thus, directed to find other words such as conclusion instead of findings; • Revisit the second recommendation especially on definition of 'surface collection'. Refer the investigation report for related correspondence and formulate another recommendation; • Rearrange the flow of the study such as implications-consequences-concerns-recommendations for ease of reference; • In the report, acknowledge the effective systems already in place; • Put more information on why the open auction was ineffective under recommendations; • Explore what should be included in the Books of accounts; • Recommend the need for engagement of stakeholders in common service delivery such as the monitoring and management of weighbridge; • Address the issue of why there is no takers for far-flung areas. Commission directed to include the decisions and no need to come back to Commission.
2.	Update and seek direction on the Mandatory Indicator– PD, DoPE	As per the decision of the 74th Commission Meeting, PD checked the vulnerabilities of the agencies on the five parameters. Of the 131 agencies, based on the available data, 13 agencies fall under the Highly vulnerable category. Given that the direction was to formulate agency specific Mandatory Indicator (MI) for those under highly vulnerable as well as general MI for other agencies, the Division proposed to keep the

		scope for formulation of MI for only the highly vulnerable agencies. Towards this, the Commission approved as proposed.
3.	Apprise and seek direction on consecration of P/ling Office Building and Rimdo- SS	The Head of SS proposed for office Rimdo on 19 May 2022 at Choeshum and as previous year, to meet the expense from the Staff Welfare Scheme. The Commission approved as proposed. As for Phuentsholing Office Building consecration, the Commission directed to consult with Khenpo and schedule any day from 31 May to 4 June. The ceremony should be low key with only key external guest from local agencies. Henceforth, the Phuentsholing Office Building to be called as *"Field Office, ACC Phuentsholing"*.
4.	Present status on ATR-DoPS	Director, DoPS presented status of pending ATR as of date (10 May 2022). There are total of 78 ATRs pending. While noting the pending ATRs, the Commission noted the importance of the Departments to devise strategies to address the issues at department level as far as possible and for that matter, need for a framework on delegation of responsibilities. Thus, directed PPS to table the agenda in Directors Forum.
5.	Seek direction on revision of MOU with RCSC- PPS, SS	During the meeting between DoPS and RCSC regarding sharing of complaints and on Integrity Vetting System, the suggestion from the team were to renew the Memorandum of Understanding (MOU) between the two agencies which was signed in 2016. Additionally, the focal from RCSC also informed the possibility to share information from their legal module, which has information on administrative action against civil servant. Towards this, since ACAB is under amendment, until the outcome, the Commission directed to keep on hold the MoU renewal. However, sharing of information and access to their system should be pursued.
6.	Apprise on insertion (proposed) of certain provisions in the ACA (Amendment) Bill concerning security measures - LD	Based on the direction of the Commission, the LD proposed insertion of new provision concerning the security measure to the ACAB amendment (*attached as Annexure I*). Towards this, the Commission gave directions as follows: • Under the rational for arm and ammunition, mention that it will be guided by appropriate rules & regulation and will be management by Security Unit headed by Royal Bhutan Police officials on deputation. • Beside the provision on security measure, include the IVR provisions. • PPS to seek appointment with Prime Minister, National

		Speaker, National Council Chairperson, Opposition Leader and Chairperson of Joint Committee on ACAB amendment to propose the insertion of the new proposals. Besides this, the Commission directed LD to explore other options if the provisions are not approved.
7.	Others: *i. Revision of SOPs/Guidelines/Rules and Regulations- PPS* *ii. Delegation of power- PPS*	The Commission directed PPS to coordinate with Heads and schedule the revision of SOPs/Guidelines/Rules and Regulations. Directed PPS to coordinate Directors Forum and discuss on areas that can be handled at the Department/ Division level and on areas that should go to Commission level.

Commissioner **Commissioner** **Chairperson**